

Uma Devi vs Sanjay Kumar on 31 January, 2026

CS SCJ 730/23
UMA DEVI VS. SANJAY KUMAR

IN THE COURT OF SH. ANKIT MITTAL, CIVIL JUDGE-
01 (SOUTH) SAKET COURT, NEW DELHI

Civil Suit No :- 730/23
CNR No :- DLST09-001696-2023

UMA DEVI
W/o Shri Shiv Sagar
R/o H.No. J-1/82, Ground Floor,
Gali No. 1, Pipal Chowk,
Sangam Vihar,
New Delhi-110062

.....PLAINTIFF

VERSUS

1. SANJAY KUMAR
S/o Shiv Prasad
R/o H.No. 376, Ground Floor,
Pusa Type-2,
Krishi Kunj, IARI,
Central Delhi-110012

.....DEFENDANT NO. 1

2. SHIV PRASAD
(deleted vide order dated 23.09.2023)
R/o H.No. 376, Ground Floor,
Pusa Type-2,
Krishi Kunj, IARI,
Central Delhi-110012

.....DEFENDANT NO. 2

Date of Institution : 21.09.2023
Date of Decision : 31.01.2026
Decision : DECREED

Digitally
signed by
ANKIT

ANKIT MITTAL

MITTAL Date:

2026.01.31

17:29:58

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Page no. 1 of 30

(Ankit Mittal)
CJ-01/(South) Saket Court/New Delhi
CS SCJ 730/23
UMA DEVI VS. SANJAY KUMAR

SUIT FOR RECOVERY OF RS. 2,17,000/- ALONG WITH
INTEREST

JUDGMENT:

-

1. This is a civil suit (initially filed as a summary suit) for recovery of an amount of Rs. 2,17,000/- along with interest @ 24% per annum from the date of filing of the suit till its realization in favour of plaintiff.
2. It is pertinent to mention here that initially the present suit was filed as a summary suit. However, same was converted into an ordinary civil suit in view of the submissions given by Ld. Counsel for plaintiff on 12.08.2024. Accordingly, the application for leave to defend was unconditionally allowed and present suit was converted into an ordinary civil suit.
3. It is further pertinent to mention here that vide separate statement of Ld. Counsel for plaintiff, defendant no. 2 was deleted from the array of parties vide order dated 23.09.2023.

AVERMENTS OF THE PLAINT:-

4. Succinctly, the case of the plaintiff is that defendant no. 1 is the nephew and defendant no. 2 is the brother in law of plaintiff. It is averred that in the month of September, 2022, defendant no. 1 had approached the plaintiff for financial help of Rs. 2,17,000/- for his business which was granted by the plaintiff and defendant no. 2 stood as a guarantor of defendant no. 1. It is averred that in the month of December 2022, plaintiff demanded her money back to which, defendants granted some time and Page no. 2 of 30 by ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.31 17:30:05 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR issued an undertaking cum guarantee letter in favour of plaintiff. It is averred that defendant no. 1 issued a cheque bearing no. 092551 dated 24.01.2023 for an amount of Rs. 2,17,000/- in favour of plaintiff, however, upon presentation, same was returned dishonoured with remarks "funds insufficient". It is averred that plaintiff informed the defendants about the dishonourment of the said cheque to which defendants granted four months time to return the amount.

5. It is averred that in the month of May, 2023, defendant no. 1 again issued a cheque bearing no. 092546 dated 23.05.2023 for an amount of Rs. 2,17,000/- in favour of plaintiff, however, upon presentation, same was also returned dishonoured with remarks "funds insufficient". It is averred that plaintiff again informed the defendants about the dishonourment of the said cheque to which, defendants flatly refused to return the loan amount. Consequently, a legal notice dated 11.09.2023 was issued upon the defendants. Despite receipt of same, defendants neither replied nor returned the loan amount. Having left with no other option, present suit was filed seeking following reliefs:-

(i) Pass a decree for a sum of Rs. 2,17,000/- in favour of the plaintiff and against the defendants along with pendente lite and future interest on the aforesaid amount @ 24% p.a;

(ii) Cost of the suit; and

(iii) Any other relief.

AVERMENTS OF THE WRITTEN STATEMENT:-

6. On the contrary, the case of the defendant is that the defendant no. 1 was a member of kameti ground which was Page no. 3 of 30 Digitally signed by ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.31 17:30:12 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR started by the husband of plaintiff namely Late Shiv Sagar in 2021 and as a member of that kameti, he took his share of Rs. 2,17,000/- and issued three cheques bearing no. 092546, 092549 and 092551 to the husband of plaintiff. It is averred that husband of plaintiff had assured that the said cheques will return to defendant no. 1 when the tenure of kameti is completed. It is stated that defendant no. 1 had repaid the entire amount of kameti within time, however, the husband of plaintiff has not returned the said blank signed cheques on the ground that same have been misplaced. It is stated that whenever defendant demanded the said cheques, the plaintiff deliberately avoided the defendant on one pretext or the other and has filed a false case. It is stated that in the year 2021, defendant granted a friendly loan of Rs. 1,50,000/- to the plaintiff on account of ill health of husband of plaintiff. It is stated that plaintiff had malafidely presented the cheques of defendant in her bank account. It is stated that dispute between the parties was settled in Panchayat on 01.06.2023 and plaintiff returned the said cheques to the defendant. It is stated that while returning from the plaintiff residence, his handbag containing the said cheques was lost. It is stated that plaintiff misused the said cheques and filed the false and frivolous case against the defendant. It is stated that no such transaction as alleged by the plaintiff ever happened. It is stated that present suit has been filed just to harass and blackmail the defendant to

extort money from him. It is stated that no cause of action arose in favour of plaintiff. All the other averments of the plaintiff have been denied and it is prayed that present suit is liable to be Digitally Page no. 4 of 30 signed by ANKIT ANKIT Date:

MITTAL MITTAL 2026.01.31 17:30:19 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR dismissed.

REPLICATION:-

7. In replication, averments of the plaint have been reiterated and contents of the written statement have been denied. ISSUES:-

8. From the pleadings of the parties, following issues were framed by Ld. Predecessor of this court vide order dated 22.01.2025:-

(i) Whether the plaintiff is entitled to recovery of sum of Rs. 2.17 lacs along with pendente lite and future interest @ 24% p.a. from the defendant along with cost? OPP

(ii) Whether the plaintiff had given any financial help to the defendant? OPP

(iii) Whether the present suit is not maintainable in its present form? OPD

(iv) Relief.

PLAINTIFF EVIDENCE:-

9. To prove her case, plaintiff herself stepped into the witness box as PW1 who tendered her affidavit of evidence as Ex. PW1/A and has relied upon following documents i.e.

(i) Ex. PW1/1 (OSR) i.e. Handwritten acknowledgment letter of D1 in favour of deponent;

(ii) Ex. PW1/2 i.e. Legal demand notice dated 11.09.2023;

(iii) Ex. PW1/3 i.e. Original postal and courier receipts;

(iv) Mark B (colly) (4 pages) i.e. Copy of tracking report of courier; Digitally signed by ANKIT Page no. 5 of 30 ANKIT MITTAL Date:

MITTAL 2026.01.31 17:30:26 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR

(v) Mark A (exhibited as Ex. PW1/5 in affidavit) i.e. Computer generated printout of lost report dated 21.09.2023;

(vi) Mark P1 i.e. Photocopy of cheque bearing no. 092551;

(vii) Mark P2 i.e. Photocopy of bank return memo dated 27.01.2023;

(viii) Mark P3 i.e. Photocopy of cheque bearing no. 092546; and

(ix) Mark P4 i.e. Photocopy of bank return memo dated 25.05.2023.

10. PW1 was duly cross-examined by Ld. Counsel for defendant. During cross-examination, it is stated by PW1 that she is doing stitching work under a Fabricator and also work at her home since last 10 years. She states that she is getting salary of Rs. 14,000/- p.m in cash. She states that fabricator has not provided any salary slip. She cannot produce any proof regarding my salary and employment with Fabricator. However, the Fabricator has not provided any document about her salary and employment. She denied that she is not working a stitching work under Fabricator and have not any income. She is having two bank accounts one in Kotak Bank and but she does not remember her bank account. However, it might be in SBI. She denied that she has received money from defendant in her both accounts. She has received money only in Kotak Bank. However, the defendant was having financial transaction with her and her husband and the defendant was taking money from her husband and he made the payment in her account and she also advanced the defendant due to previous financial transaction. Digitally signed by ANKIT ANKIT Page no. 6 of 30 MITTAL Date:

MITTAL 2026.01.31 17:30:33 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR

11. She admits that as mentioned at para of Ex. PW1/A, defendant had took 1 lac from her husband and returned only 70,000/-. However, the amount of 70,000/- was received in her Kotak Bank account on behalf of her deceased husband. She states that her husband got expired in the month of December, 2023. She states that the advance money of 1 lac was granted by her husband to the defendant so he know about the date of advancement. She did not take any step for recovery of remaining money of 30,000/- against the defendant. She verbally demanded the said money of 30,000/- from defendant after the death of her husband but he did not pay the same. However, the same advancement made by her husband so she have not filed any case. She states that she has served the legal notice through her counsel in the year 2022 and demanded the money of 2.17 lacs from the defendant and she has not received said money so that she filed the present case. She states that Ex. PW1/1 has handwritten by the defendant. She does not remember on what date and year Ex. PW1/1 had written by defendant. However, the father of defendant bear his signatures as a guarantor. She denied that Ex. PW1/1 is a forged and fabricated document. She states that no meeting was ever happened once the defendant failed to return the money in the presence of respective witnesses. She denied that the defendant has paid the entire outstanding money of 2.17 lacs by bank transfer or cash. She states that usually, the money transaction was happened with her

husband. She states that only the amount of 2.17 lacs had advanced by her to the defendant. She did not maintain any Page no. 7 of 30 by ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.31 17:30:40 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR register on receiving the amount from the defendant. However, she has trust over the defendant being her nephew.

12. She states that she is not an income tax payer. She arranged the money of 2.17 lacs from her personal saving and some amount was brought by her from her daughter who is working in a private company. However, she used to save the money in her house for solminzation of her daughter's marriage. Her daughter made love marriage two years back. She states that she lodged the lost report Mark A against the missing of her cheque for sum of 2.17 lacs and no any other document were got misplaced. She lodged the said report at typing pool at Saket Court. She denied that Mark A is a false document as no any document were misplaced from her. She denied that she had returned the said cheques to the defendant on 01.06.2023 at the time of settlement in the presence of witnesses. She does not know whether her husband used to invest in committee (kameti). She and her husband were resides together. She denied that the cheques were given by defendant to her husband for security purpose against the committee (kameti). She denied that she has filed the present false case against the defendant in order to extort the money. PW1 cross-examination was concluded on 07.05.2025.

13. Thereafter, summoned witness Sh. Rajesh Kumar Valmiki, Sr. Manager, Canara Bank was examined as PW2. He has brought the summoned record i.e. bank statement of the bank account bearing no. 91212010026384 of the defendant which maintains by our branch. The statement belongs to period from Page no. 8 of 30 Digitally signed by ANKIT ANKIT MITTAL MITTAL Date:

2026.01.31 17:30:47 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR 01.01.2023 till 30.05.2023 and the true copy of the same is exhibited as Ex. PW2/A (running into 1 to 110 pages).

14. PW2 was not cross-examined by Ld. Counsel for defendant since the witness has been summoned only to produce documents. Thereafter, vide separate statement of the plaintiff dated 11.07.2025, plaintiff evidence was closed and matter was fixed for defendant evidence.

DEFENDANT EVIDENCE:-

15. On the other hand, defendant no. 1 was examined himself as DW1 who tendered his affidavit of evidence as Ex. DW1/1 and has relied upon following documents i.e. :-

(i) Ex. DW1/A (colly) (3 pages) i.e. legal notice dated 06.04.2022;

(ii) Ex. DW1/B (colly) (3 pages) i.e. legal notice dated 30.05.2023;

(iii) Mark DW1/C (colly) (47 pages) i.e. Copy of statement of account w.e.f. 01.01.2020 till 02.06.2023; and

(iv) Mark DW1/D (colly) (3 pages) i.e. Copy of statement of account w.e.f. 02.01.2020 till 22.10.2020.

16. DW1 was duly cross-examined by Ld. Counsel for plaintiff. During cross-examination, it is stated by DW1 that he is a driver by profession and he drive the vehicle in Ola Uber company. He has three bank accounts in Canara Bank, State Bank of India and IDFC Bank. He states that he received the money from the customers through UPI mode in my IDFC Bank account. He states that he had not plaked any document regarding the Kameti transaction with Lt. Shiv Sagar any as claimed in his Page no. 9 of 30 ANKIT MITTAL Date:

MITTAL 2026.01.31 17:30:54 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR affidavit Ex.DWI/I. He had not placed documents/ acknowledgement/ receipt qua the cheque bearing no. 092546, 092549 and 092551 which was stated in his affidavit Ex.DW1/1. He denied that the content of para no.2 in his affidavit Ex. DWI/I are the baseless story only to skip himself from his legal liability towards the plaintiff. He had not made any police complaint to the concerned police official and not served any legal notice to the plaintiff regarding the handed over three cheques bearing no. 092546, 092549 and 092551 and same were used by the plaintiff. He denied that these cheques were not handed over to the Lt. Shiv Sagar during his life time and same were not misused by the plaintiff that is why, he had not made any complaint to police authority nor serve any legal notice to the plaintiff qua the aforesaid cheques. He denied that the cheque bearing numbers 092546 and 092551 were issued to the plaintiff qua discharged of his legal liability of Rs. 2,17,000/-.

17. He had not made any reply against the received legal notices Ex. DWI/A and Ex. DW1/B and that is why no any document to support of his defence is placed on record. However, one Panchayat was held between him and the plaintiff and matter has been settled there and the aforesaid Panchayat was held at around the festival of Rakhi in year 2022. He had not placed any document regarding conducting Panchayat and settlement therein, on judicial record. He denied that no such Panchayat was ever held for settlement between him and the plaintiff that is why after serving of legal notices Ex.DW1/A and Ex.DW1/B, he had not replied of notices nor serve any notice for compliance of the Page no. 10 of 30 Digitally signed by ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.31 17:31:00 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR terms of the Panchayat nor take any legal action against the plaintiff before the Court of law. He had not placed any documents regarding financial help to Uma Devi and Pooja for sum of Rs. 1,20,000/- as stated in para no.6 of his affidavit Ex. DWI/1. He states that as per para no.6 of his affidavit Ex.DW1/1, his handbag got misplaced while returning from Panchayat from the bus. He does not mention the date in his affidavit but it was misplaced at the time around

Rakshabandhan in the year 2022. Again said, he is not sure about missing of his bag from bus or from any other place. He had not made any police complaint about missing of his handbag and containing documents. However, as his matter was settled at Panchayat, so that he had not made any police complaint. He denied that his handbag and containing documents were not misplaced that is why he had not reported the same to the police authority. He denied that he had not stated the particular date in his affidavit nor stated today before the Court. Reason behind his handbag and containing documents were never misplaced even he failed to disclosed correct place of missing. He denied that the contents from para no. 1 to 7 in his affidavit Ex.DW1/1 are false only to escape himself from his legal liability towards the plaintiff or that to mislead this Hon'ble Court to distract from finding out the truth. He denied that he is still liable to pay sum of Rs. 2,17,000/- to the plaintiff. He denied that he has not transferred any single penny to the plaintiff and her daughter against loan money Rs. 2,17,000/- till date. DW1 cross-examination was concluded on 19.08.2025.

18. Further, Smt. Asha Devi was examined as DW2 who Page no. 11 of 30 Digitally signed by ANKIT ANKIT Date:

MITTAL MITTAL 2026.01.31 17:31:07 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR tendered her affidavit of evidence as Ex. DW2/A.

19. DW2 was duly cross-examined by Ld. Counsel for plaintiff. During cross-examination, it is stated by DW2 that she is working in Kaushik Hospital, Burari as a house keeping staff. She does not know the complete address of said hospital and is working in the said hospital since last 05 years. She states that she does not know the address of plaintiff, however, she is residing at Sangam Vihar. She cannot tell the date when she visited to KKD Courts for preparing her affidavit Ex. DW2/A. However, it was prepared few days back. She states that her brother informed her about the present case. She cannot tell as to how much amount has borrowed by her brother (defendant herein) from the plaintiff and her husband. She does not remember the date when her brother had borrowed the amount from the plaintiff and her husband. She cannot confirm the dates about the transactions happened between her brother and the plaintiff and her husband. She does not know how much amount was returned by her brother to the plaintiff and her husband. She admits that her brother informed her about all the transactions which were happened between the plaintiff and her husband and the defendant.

20. She does not know what disease was have to her uncle (husband of plaintiff). However, her uncle used to drink alcohol regularly. She does not know the exact date of death of her uncle. However, it was during the winters. She does not know the day, month and year when Uma Devi and her daughter approached her. She states that there was no sarpanch in Page no. 12 of 30 Digitally signed by ANKIT ANKIT MITTAL MITTAL Date:

2026.01.31 17:31:15 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR Panchayat where they (consisting her, her brother, her father and daughter of plaintiff) were going for settlement of the matter. She had duly deposed the place of panchayat in her affidavit Ex. DW2/A. However, it was happened at the house of plaintiff. She denied that she intentionally depose falsely because she have not mentioned the place of settlement in affidavit by Panchayat. She admits that the place of Panchayat has not written in her evidence affidavit. She also admit that it is not written in her evidence affidavit that her father and daughter of plaintiff were also participated in the Panchayat. She does not know the exact date and month when the settlement was happened between plaintiff and defendant but it was about in the month of May or June, 2023. She states that the signature on the document Ex. PW1/1 (OSR) does not correspond with the signature of defendant. She states that the signatures on the cheques Mark P1 & Mark P3 does not correspond with the signatures of defendant. She states that the address mentioned in legal notice Ex. PW1/2 is correct address of her brother/ defendant where he is residing with his father.

21. She or her brother has not filed any police complaint against the plaintiff in respect of cheating and extortion as mentioned in her evidence affidavit. Further, she or her brother has not gave any legal notice to the plaintiff for not performing the settlement of panchayat as mentioned in her evidence affidavit. She denied that she is not aware with the writing of her brother Sanjay (defendant herein) that is why she could not identify the signature of her brother on the cheques i.e. mark P1 Page no. 13 of 30 Digitally signed by ANKIT ANKIT Date:

MITTAL MITTAL 2026.01.31 17:31:24 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR and P3 as well as of Ex PW 1/1 (OSR). She states that she has cordial relations with her brother / defendant. She denied that she is deposing falsely in order to save her brother. She denied that she had falsely filed her evidence affidavit DW 2/A only to secure her brother from his legal liability towards the plaintiff. DW2 cross-examination was concluded on 31.10.2025.

22. Thereafter, vide separate statement of Ld. Counsel for defendant no. 1, DE was closed on 31.10.2025 and matter was listed for final arguments.

FINAL ARGUMENTS:-

23. Final arguments advanced by Ld. Counsel for plaintiff and defendant were heard on 06.01.2026.

24. At this juncture, it is relevant to refer the landmark judgement of Hon'ble Supreme Court of India passed in the case titled as Dr N.G Dastane v Mrs S Dastane in AIR 1975 SCC 1534, wherein it discussed the concept of burden of proof in the Civil law and relevant paragraph is reproduced herein as under:

"...24. The normal rule which governs civil proceedings is that a fact can be said to be established if it is proved by a preponderance of probabilities. This is for the reason that under the Evidence Act, Section 3, a fact is said to be proved when the court either believes it to exist or considers its existence so probable that a prudent man ought, under the circumstances of the particular case, to act upon the supposition that it exists. The belief regarding the existence of a fact may thus be founded on a balance of probabilities. A prudent man faced with Page no. 14 of 30 ANKIT MITTAL Date:

MITTAL 2026.01.31 17:31:32 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR conflicting probabilities concerning a fact-situation will act on the supposition that the fact exists, if on weighing the various probabilities he links that the preponderance is in favour of the existence of the particular fact. As a prudent man, so the court applies this test for finding whether a fact in issue can be said to be proved. The first step in this process is to fix the probabilities, the second to weigh them, though the two may often intermingle. The impossible is weeded out at the first stage, the improbable at the second. Within the wide range of probabilities the court has often a difficult choice to make but it is this choice which ultimately determines where the preponderance of probabilities lies. Important issues like those which affect the status of parties demand a closer scrutiny than those like the loan on a promissory note : "the nature and gravity of an issue necessarily determines the manner of attaining reasonable satisfaction of the truth of the issue" Per Dixon, J. in Wright v. Wright (1948) 77 C.L.R. 191 at p. 210; or as said by Lord Denning, "the degree of probability depends on the subject-matter. In proportion as the offence is grave, so ought the proof to be clear" Blyth v. Blyth [1966] 1 A.E.R. 534 at 536. But whether the issue is one of cruelty or of a loan on a promote, the test to apply is whether on a preponderance of probabilities the relevant fact is proved. In civil cases this, normally, is the standard of proof to apply for finding whether the burden of proof is discharged...." Digitally signed by ANKIT Page no. 15 of 30 ANKIT MITTAL MITTAL Date:

2026.01.31 17:31:40 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR

25. Further, it is relevant to mention Section 101 of the Indian Evidence Act, 1872 which defines "burden of proof" and laid down that the burden of proving a fact always lying upon the person who asserts the facts. Until such burden is discharged, the other party is not required to be called upon to prove his case. The Court has to examine as to whether the person upon whom the burden lies has been able to discharge his burden. Until he arrives at such conclusion, he cannot proceed on the basis of weakness of other party. Furthermore, Section 58 of the Indian Evidence Act contained that no fact need to be proved in any proceedings which parties thereto or their agents agree to admit at the herein, or which, before the hearing, they agree to admit by any writing under their hands or which by any rule of pleadings enforce at the time they are deemed to have admitted by their pleadings.

26. Keeping the aforesaid said principles of law of evidence in the mind, I humbly give my findings issue-wise as under:

Whether the plaintiff is entitled to recovery of sum of Rs. 2.17 lacs along with pendente lite and future interest @ 24% p.a. from the defendant along with cost? OPP Whether the plaintiff had given any financial help to the defendant? OPP & Digitally signed by ANKIT Page no. 16 of 30 ANKIT MITTAL MITTAL Date:

2026.01.31 17:31:50 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR Whether the present suit is not maintainable in its present form? OPD

27. All these issues are taken up together in order to avoid repetition and they are interconnected with each other as well. The onus to prove issues no. 1 & 2 is upon the plaintiff whereas the onus to prove issue no. 3 is upon defendant.

28. Primarily, the case of plaintiff is that defendant namely Sanjay Kumar is her nephew and in the month of September, 2022, defendant had approached the plaintiff at her home and requested to grant the financial help of Rs. 2,17,000/- and same was granted to him since the earlier loans were returned timely by him. Furthermore, it was pleaded by the plaintiff that in the month of December, 2022, when plaintiff demanded her money back from defendant, defendant sought some time and same was guaranteed by his father namely Shiv Prasad. It was further submitted that a hand written acknowledgement letter was also executed by defendant in favour of plaintiff wherein defendant had given undertaking that he will repay the amount. Further, it was submitted that in the month of January, 2023, defendant had issued cheque bearing no. 092551 dated 24.01.2023 for returning the amount in question, however, same was bounced due to "insufficient funds". Furthermore, it was submitted that upon the request of the defendant, some more time was given for the repayment of loan and in the month of May, 2023, defendant had again issued the cheque bearing no. 092546 dated 23.05.2023 against the Page no. 17 of 30 Digitally signed by ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.31 17:31:58 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR discharge of his legal liability, however, again, same was bounced due to "insufficient funds". It was further submitted by the plaintiff that she immediately contacted the defendant and informed about dishonoured cheque, however, defendant flatly refused to return her amount in question. Thereafter, it was pleaded on behalf of plaintiff that she served a legal demand notice to the defendant through her counsel on 11.09.2023, however, defendant neither repaid the amount nor replied to such legal notice, therefore, plaintiff was constrained to file the present suit.

29. Per Contra, the defendant' side vehemently opposed the contentions raised by the plaintiff. In gist, the defence of the defendant was that he was the member of kameti which was started by the husband of plaintiff namely Late Shiv Sagar in 2021 and as a member of that kameti, he took his share of Rs. 2,17,000/- and issued three cheques bearing no. 092546, 092549 and 092551 to the

husband of plaintiff. It is averred that husband of plaintiff had assured that the said cheques will be returned to him when the tenure of kameti is completed, however, they were never returned and the plaintiff's husband deliberately avoided the defendant on one pretext or the other. It is stated that plaintiff had malafidely presented the cheques of defendant in her bank account since no loan was taken from her and the cheque which were given to her husband has been misused by her. It is further stated that dispute between the parties was settled in Panchayat on 01.06.2023 and plaintiff returned the said cheques to the defendant. It is stated that while returning from the plaintiff Digitally Page no. 18 of 30 signed by ANKIT ANKIT Date:

MITTAL MITTAL 2026.01.31 17:32:16 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR residence, his handbag containing the said cheques was lost. Thus, it was submitted that no such transaction as alleged by the plaintiff ever happened and the present suit has been filed just to harass and blackmail the defendant to extort money.

30. Submissions heard. Record perused.

31. Further, since the present suit is a suit for recovery of money. In order to prove her case on a better footing, it is imperative for the plaintiff to lead a convincing evidence to show that plaintiff is entitled to recover the money from defendant. It was also imperative to show that it is a legally recoverable money. Further the plaintiff has to prove her plaint by way of oral or document evidence or both.

32. During trial, the plaintiff has examined herself as PW1. During her examination in chief, the plaintiff deposed the contents of her plaint in her evidence affidavit. Further, plaintiff has also remained consistent in her cross-examination to the extent of events relating to the lending of loan amount to defendant, since defendant' side failed to elicit even a single contradictory statement from her in respect of facts relating to advancement of loan, thus failed to impeach her credibility to that extent.

33. Further, plaintiff had averred in her plaint that in order to discharge his legal liability, defendant had issued two cheques on separate occasions for amount in question since first cheque bearing no. 092551 dated 24.01.2023 which was issued and handed over in the month of January, 2023 by him, was bounced due to insufficient funds, thereafter upon the request of Page no. 19 of 30 ANKIT MITTAL Date:

MITTAL 2026.01.31 17:32:22 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR defendant some more time was given and second cheque bearing no. 092546 dated 23.05.2023 was again issued and given by the defendant himself, which was again bounced due to insufficient funds, thereafter upon being asked by the plaintiff about the dishonoured cheque, when he flatly refused to return the amount, plaintiff filed the present suit has been fairly established by her.

34. It is relevant to mention here that defendant has admitted the factum of giving cheques in his WS and has not disputed his signature on the aforesaid cheques in his Written Statement. Further, defendant has also admitted that the aforesaid cheques were also bounced due to insufficient funds, however defendant has contested the claim of handing over the cheques to plaintiff qua discharge of his liability on the ground that defendant was part of Committee run by the plaintiff's husband and three cheques including 2 mentioned by the plaintiff were taken by the plaintiff's husband on the pretext that same will be returned to him after the tenure of committee is over, however same were never returned to him on one pretext or another; ultimately he was told the cheques have been misplaced and will be returned once they are traced. (Defence relating to committee has been discussed in later part of judgment).

35. It is relevant to mention here that once the fact that the signature on cheque is admitted then it attracts the presumption of S. 118 of NI Act. The relevant extract is reproduced herein as under:

Section 118(a) in The Negotiable
Instruments Act, 1881

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CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR "(a) of consideration --that every negotiable instrument was made or drawn for consideration, and that every such instrument, when it has been accepted, indorsed, negotiated or transferred, was accepted, indorsed, negotiated or transferred for consideration;

36. At this juncture, reliance is upon the landmark judgment passed by the Hon'ble Apex Court of India in the case titled as "Bharat Barrel And Drum Manufacturing vs Amin Chand Payrelal AIR 1999 SCC 1008" wherein it has discussed the evidentiary value of presumption as given in Section 118(a) of NI Act and relevant paragraph is reproduced as under:

".....Upon consideration of various judgments as noted hereinabove, the position of law which emerges is that once execution of the promissory note is admitted, the presumption under Section 118(a) would arise that it is supported by consideration. Such a presumption is rebuttable. The defendant can prove the non-existence of

consideration by raising a probable defence. If the defendant is proved to have discharged the initial onus of proof showing that the existence of consideration was improbable or doubtful or the same was illegal, the onus would shift to the plaintiff who will be obliged to prove it as a matter of fact and upon its failure to prove would dis-entitle him to the grant of relief on the basis of the negotiable instrument. The burden upon the defendant of proving the non- existence of the consideration can be Page no. 21 of 30 by ANKIT ANKIT MITTAL Date:

MITTAL 2026.01.31 17:32:39 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR either direct or by bringing on record the preponderance of probabilities by reference to the circumstances upon which he relies. In such an event the plaintiff is entitled under law to rely upon all the evidence led in the case including that of the plaintiff as well. In case, where the defendant fails to discharge the initial onus of proof by showing the non- existence of the consideration, the plaintiff would invariably be held entitled to the benefit of presumption arising under Section 118(a) in his favour. The court may not insist upon the defendant to disprove the existence of consideration by leading direct evidence as existence of negative evidence is neither possible nor contemplated and even if led is to be seen with a doubt. The bare denial of the passing of the consideration apparently does not appear to be any defence. Something which is probable has to be brought on record for getting the benefit of shifting the onus of proving to the plaintiff. To disprove the presumption the defendant has to bring on record such facts and circumstances, upon consideration of which the court may either believe that the consideration did not exist or its non-existence was so probable that a prudent man would, under the circumstances of the case, shall act upon the plea that it did not exist. We find ourselves in the close proximity of the view expressed by the Full Benches of the Rajasthan High Court and Andhra Pradesh High Court in this regard...."

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37. In the light of given findings by Hon'ble Supreme Court of India, since it is admitted case of defendant that the cheque bears his signature therefore the presumption has been raised in the favor of the plaintiff that the cheque in question was issued for consideration by the defendant in her favour and fact it has been misused has to be proved by the defendant only. (the same has been discussed in later part of judgment).

38. Further, it is pertinent to mention that plaintiff has relied upon the hand written acknowledgement letter alleged to be written by the defendant wherein he assured that he will repay the amount to the plaintiff and same was exhibited as Ex. PW1/1 (OSR). It was further alleged by the plaintiff that the aforesaid hand written note was written by the defendant upon the bouncing of the

first cheque which was given by the defendant in the month of January, 2022.

39. It is relevant to mention that the defendant in his written statement has stated that since the legible copy of the document has not been provided by the plaintiff, therefore, defendant reserve his right to file the reply as and when the copy is supplied to him. Pertinently, in his affidavit of admission- denial of documents as well, the defendant has denied, however, he has given remarks that same is not legible and same is forged. It is relevant to mention that the defendant is well within his right to demand the legible copy of documents before filing the WS, however, defendant chose to waive off his right and filed incomplete pleadings qua this document. It is important to note that as per the rule of pleadings, it was incumbent upon the Page no. 23 of 30 Digitally signed by ANKIT ANKIT Date:

MITTAL MITTAL 2026.01.31 17:32:56 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR defendant to file the comprehensive reply/ denial qua the averments relating to hand written note taken by the plaintiff. Further, even if, he had filed the incomplete pleadings qua the said document on the premise that the same is not legible, then it was the duty of the defendant only to seek the legible copy and file the additional pleadings, if required but in no case, defendant can wriggle out from his obligation from replying to the pleadings taken by the plaintiff. Hence, it is being inferred against the defendant that he deliberately avoided to reply to the said paras of the plaint which is related to hand written acknowledgement, therefore, an adverse inference is being drawn against him.

40. Further, plaintiff in order to prove her case has also relied upon the copy of legal notice dated 11.09.2023 Ex. PW1/2 which was stated by her that same was served upon the defendant and has also placed on record original postal receipts and courier receipts Ex. PW1/3 (colly) along with tracking reports which are exhibited as Ex. PW1/ 4 (colly). Pertinently, though defendant he has denied generally the factum of legal demand notice to him in his WS at para 7 of reply on merits, however defendant has admitted the legal notice in his affidavit of admission and denial of documents filed on his behalf dated 21.01.2025, thus, contradicting himself. Moreover, defendant has filed legal notices dated 06.04.2022 and 30.05.2023 sent by plaintiff on the bouncing of cheques respectively which are exhibited Ex. DW1/A (Colly) and Ex DW1/B (Colly) and admittedly, no replies has ever sent by defendant till date to such notices sent to Digitally Page no. 24 of 30 ANKIT signed by ANKIT MITTAL MITTAL Date:

2026.01.31 17:33:06 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR him. Interestingly, defendant failed to ask even a single question upon these legal notices Ex DW1/A and Ex DW1/B in the cross examination of plaintiff, in case he was relying upon any contradictions in these legal notices and version of plaintiff, hence no benefit accrued to the defendant for relying upon these legal notices.

41. Further, it is settled law that if the plaintiff, before filing the suit, makes serious assertion in the notice to the defendant, then the defendant must not remain silent by ignoring to reply, if he does so, an adverse inference may be raised against him.

42. In *Metropolis Travels and Resorts (I) Pvt. Ltd. Vs. Sumit Kalra & Anr.* 98 (2002) DLT 573 (DB), wherein, Hon ble Division Bench of our Hon'ble High Court of Delhi quoted with approval the authority *Kalu Ram Vs. Sita Ram*, 1980 RLR (Note) 44, of our own Hon ble High Court which is as follows:-

"Observations of Kalu Ram's case (supra) apply on all force to the facts of this case. In the case in hand also despite receipt of notice respondent did not care to reply nor refuted the averments of demand of the amount on the basis of the invoices / bills in question. But the learned Trial Court failed to draw inference against the respondents."

43. In the light of above findings, it can said that from discussion above, it is apparent that legal notice was served upon defendant still he didn't replied the same rather he tried to deny it, thus adverse inference can be drawn against the defendant in Page no. 25 of 30 Digitally signed by ANKIT ANKIT Date:

MITTAL MITTAL 2026.01.31 17:33:15 +0530 (Ankit Mittal) CJ-01/(South) Saket Court/New Delhi UMA DEVI VS. SANJAY KUMAR the present case. Thus, it can be said that plaintiff has able to establish the prima facie case in her favour that she gave the friendly loan of Rs. 2,17,000/- to the defendant, however, same was not returned to her by the defendant. Therefore, the onus to rebut the same has shifted upon the defendant as per the law of evidence.

44. Now, coming to the defence of the defendant which has two limbs. Firstly, it has been argued on behalf of defendant that no such loan was taken by the defendant and the cheques in question were given to the plaintiff's husband as part of committee which were never returned to him and were misused by the plaintiff in filing the present case.

45. It is relevant to mention that in the cross- examination of DW1 dated 19.08.2025, it is admitted by DW1/ defendant that he has not placed any record regarding the committee transaction with the plaintiff's husband in the present case. Further, it is also admitted by the defendant that he has not filed any acknowledgement/ receipt qua cheques given to the plaintiff's husband. Importantly, in the cross-examination of plaintiff, defendant himself suggested that the defendant has paid entire outstanding amount of Rs. 2,17,000/- by bank transfer or cash. Hence, suggesting that loan transaction has happened between the parties. It is again important to note that admittedly, no documentary proof has been filed by the defendant regarding the alleged version of committee transactions with the plaintiff's husband, therefore, in absence of any evidence, it appears to be nothing but merely a bald assertions. Digitally signed by Page no. 26 of 30 ANKIT MITTAL ANKIT MITTAL Date:

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46. Secondly, it was argued on behalf of defendant that since the parties were related to each other, therefore, settlement was reached between the parties with the intervention of panchayat. It was further submitted on behalf of defendant that as per panchayat settlement, defendant paid only Rs. 3000/- to the plaintiff and plaintiff returned all the cheques and return memos along with postal receipts to the defendant, however, when he was coming from the plaintiff's residence, the aforesaid handbag carrying all these documents were lost.

47. It is relevant to mention the testimony of DW1/ defendant on these aspects. It is again admitted by the defendant in his cross-examination that he has not placed any document regarding the panchayat and the settlement on the judicial file. It is again admitted by the defendant that he has not made any police complaint about the missing handbag and containing documents. The conduct of the defendant seems strange in the given factual matrix. Since the allegation of the defendant is that the cheques have been misused by the plaintiff despite that no police complaint was filed qua the misuse of such cheques. Further, even after the settlement by the panchayat, when the plaintiff filed the present case even then also defendant did not file any complaint which appears to be odd, considering that their ties are not cordial, therefore, any reasonable man is expected to file police complaint. Moreover, in such cases wherein defendant has taken the defence that his cheques have been lost and false suit has been filed on the basis of such cheques, the subsequent conduct of the defendant qua the action taken by him in relation Page no. 27 of 30 Digitally signed by ANKIT ANKIT MITTAL MITTAL Date:

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UMA DEVI VS. SANJAY KUMAR to such lost documents becomes material. Hence, in light of above discussion and given factual matrix, the version put out by the defendant appears to be improbable.

48. Lastly, DW1 in order to support his case also examined her sister DW2 Smt. Asha Devi. From the perusal of the testimony of DW2, it appears that she is an interested witness and has deposed merely to support the defendant's case. It is relevant to mention that despite asserting that she knows the signature of her brother then also she refused to identify the signature of the defendant on the cheques in question, even though same are not disputed by the defendant side. Further, DW2 also showed her unawareness about the money taken by DW1 from the plaintiff or her husband or about the transaction in question as alleged by the defendant. Moreover, it is admitted by DW2 that she was informed about all the transactions happened between defendant and plaintiff / plaintiff's husband by her brother i.e. defendant. Hence, it can be said that her knowledge is based about hearsay which is not admissible as relevant piece of evidence under Indian Evidence Act. Hence, her testimony is being discarded for the reasons discussed as above.

49. Moreover, the onus to prove issue no. 3 was upon the defendant that the present suit is not maintainable in its present form, however, no evidence was led on behalf of defendant on this aspect. Accordingly, it can be said that the defendant failed to prove the aforesaid issue.

50. Hence, in the light of above discussion and cited judicial authorities, it can be said that plaintiff has been Page no. 28 of 30 ANKIT Digitally signed by ANKIT MITTAL MITTAL Date:

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UMA DEVI VS. SANJAY KUMAR successful in establishing her case on the scale of preponderance of probabilities whereas the contention of defendant appears to be bald averment only and same cannot be relied upon. Therefore, it can be said that defendant has failed to discharge the onus of proof which upon him.

51. As regards the interest component, the plaintiff has claimed interest @ 24% p.a. from the date of filing of the present suit till its realisation. Considering the facts and circumstances of the case, and in exercise of discretion under Section 34 of the CPC, this Court deems it appropriate to grant interest @ 9% per annum on the decretal amount from the date of filing of the suit till the date of its realization.

52. In the light of above discussion, it can be said that plaintiff was successful in establishing her case, therefore the issue no. 1 & 2 is decided in her favor and against the defendant. Further, in absence of any evidence, issue no. 3 is decided against the defendant and in favor of plaintiff.

Relief.

53. In view of the above findings, the suit of the plaintiff is hereby decreed. Plaintiff is entitled to recover of Rs. 2,17,000/- along with pendente lite interest @ 9 per annum from the date of filing of the suit till the date of its realization against the defendant.

54. No orders as to costs.

55. Let decree sheet be drawn up accordingly.

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56. File be consigned to record room after due compli- ance.

Pronounced in open court:

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signed by

Dated: 31.01.2026

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(Ankit Mittal)

CJ-01(South)Saket/New Delhi/31.01.2026 Note: -This judgment contains thirty pages and all the pages have been checked and signed by me. Digitally signed by ANKIT ANKIT Date:

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